

TENTATIVE RULINGS

Jose Andrade, et al.
v.
Hacienda Vargas, Inc.
(And Related-Cross Action)

24CV003266

Petitions to Compromise the Disputed Claims of:

[Delila Tapia;](#)
[Xavier Tapia;](#) and
[Liah Andrade-Viurquez](#)

Hearing Date: August 14, 2026

NOTE RE TENTATIVE RULINGS

Each of these tentative rulings becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND EACH TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE RELATED HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.

Petition to Compromise the Disputed Claims of Delila Tapia

On the unopposed minor's compromise petition ("Petition") of Maria Guadalupe Benabides ("Petitioner"), as the guardian ad litem of 15-year-old Claimant Delila Tapia ("Claimant"), the Court hereby **CONTINUES** the hearing to **September 4, 2026**, at 8:30 a.m. in Department 14 to allow Petitioner to file amended papers by August 28, 2026.

Claimant resolved their case against Defendant Hacienda Vargas Inc. for \$250,000. Pursuant to the Attorney-Fee Contract between JRG Attorneys at Law ("JRG") and Petitioner, JRG "will be entitled to a contingency fee of 25% of the net recovery." [Attachment 17a to Petition at ¶ 5a.] "Net recovery" is defined as "the total of all amounts received by settlement..., including any award of attorneys' fees, minus all costs or other expense[s]." [*Id.* at ¶ 5b.]

Here, JRG seeks to recover fees totaling \$62,341.70, which is approximately 24.9% of the gross settlement of \$250,000. However, the fee to which JRG is entitled pursuant to the Attorney-Fee Contract is \$62,194.28, which is 25% of the "net recovery" (\$250,000 (gross recovery) - \$1,222.89 (expenses) = \$248,777.11 (net recovery) x 25% (fee) = \$62,194.28). Therefore, the balance of the settlement proceeds available to Claimant after payment of all fees (\$62,194.28) and expenses (\$1,222.89) is \$186,582.83, rather than \$186,435.41. That revised amount also affects the terms of the annuity. [*See* Attachments 10c and 18b(3) to Petition; *see also* Proposed Order Approving Compromise at Attachment 8b(2).]

Petitioner also requests additional orders, including limitations on how Petitioner may spend Claimant's settlement funds. [Petition at p. 9, ¶ 20.] Petitioner shall amend the Proposed Order Approving the Compromise to reflect the additional orders requested.

In sum, the matter is **CONTINUED** to September 4, 2026, at 8:30 a.m. in Department 14. Petitioner shall file amended papers consistent with this Tentative Ruling by August 28, 2026.

Petition to Compromise the Disputed Claims of Xavier Tapia

On the unopposed minor's compromise petition ("Petition") of Maria Guadalupe Benabides ("Petitioner"), as the guardian ad litem of 16-year-old Claimant Xavier Tapia ("Claimant"), the Court hereby **CONTINUES** the hearing to **September 4, 2026**, at 8:30 a.m. in Department 14 to allow Petitioner to file amended papers by August 28, 2026.

Claimant resolved their case against Defendant Hacienda Vargas Inc. for \$250,000. Pursuant to the Attorney-Fee Contract between JRG Attorneys at Law ("JRG") and Petitioner, JRG "will be entitled to a contingency fee of 25% of the net recovery." [Attachment 17a to Petition at ¶ 5a.] "Net recovery" is defined as "the total of all amounts received by settlement..., including any award of attorneys' fees, minus all costs or other expense[s]." [*Id.* at ¶ 5b.]

Here, JRG seeks to recover fees totaling \$62,341.70, which is approximately 24.9% of the gross settlement of \$250,000. However, the fee to which JRG is entitled pursuant to the Attorney-Fee Contract is \$62,194.28, which is 25% of the "net recovery" (\$250,000 (gross recovery) - \$1,222.89 (expenses) = \$248,777.11 (net recovery) x 25% (fee) = \$62,194.28). Therefore, the balance of the settlement proceeds available to Claimant after payment of all fees (\$62,194.28) and expenses (\$1,222.89) is \$186,582.83, rather than \$186,435.41. That revised amount also affects the terms of the annuity. [*See* Attachments 10c and 18b(3) to Petition; *see also* Proposed Order Approving Compromise at Attachment 8b(2).]

Petitioner also requests additional orders, including limitations on how Petitioner may spend Claimant's settlement funds. [Petition at p. 9, ¶ 20.] Petitioner shall amend the Proposed Order Approving the Compromise to reflect the additional orders requested.

In sum, the matter is **CONTINUED** to September 4, 2026, at 8:30 a.m. in Department 14. Petitioner shall file amended papers consistent with this Tentative Ruling by August 28, 2026.

Petition to Compromise the Disputed Claims of Liah Andrade-Viurquez

On the unopposed minor's compromise petition ("Petition") of Jose Andrade ("Petitioner"), as the guardian ad litem of 11-year-old Claimant Liah Andrade-Viurquez ("Claimant"), the Court hereby **CONTINUES** the hearing to **September 4, 2026**, at 8:30 a.m. in Department 14 to allow Petitioner to file amended papers by August 28, 2026.

Claimant resolved their case against Defendant Hacienda Vargas Inc. for \$250,000. Pursuant to the Attorney-Fee Contract between JRG Attorneys at Law ("JRG") and Petitioner, JRG "will be entitled to a contingency fee of 25% of the net recovery." [Attachment 17a to Petition at ¶ 5a.] "Net recovery" is defined as "the total of all amounts received by settlement..., including any award of attorneys' fees, minus all costs or other expense[s]." [*Id.* at ¶ 5b.]

Here, JRG seeks to recover fees totaling \$62,341.70, which is approximately 24.9% of the gross settlement of \$250,000. However, the fee to which JRG is entitled pursuant to the Attorney-Fee Contract is \$62,194.28, which is 25% of the "net recovery" (\$250,000 (gross recovery) - \$1,222.89 (expenses) = \$248,777.11 (net recovery) x 25% (fee) = \$62,194.28). Therefore, the balance of the settlement proceeds available to Claimant after payment of all fees (\$62,194.28) and expenses (\$1,222.89) is \$186,582.83, rather than \$186,435.41. That revised amount also affects the terms of the annuity. [*See* Attachments 10c and 18b(3) to Petition; *see also* Proposed Order Approving Compromise at Attachment 8b(2).]

Petitioner also requests additional orders, including limitations on how Petitioner may spend Claimant's settlement funds. [Petition at p. 9, ¶ 20.] Petitioner shall amend the Proposed Order Approving the Compromise to reflect the additional orders requested.

In sum, the matter is **CONTINUED** to September 4, 2026, at 8:30 a.m. in Department 14. Petitioner shall file amended papers consistent with this Tentative Ruling by August 28, 2026.